

		Plaintiff is ordered to give notice of this ruling.
2	30-2022-01251703 Miess vs. COVID Clinic, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Defendants have shown that the Administrator's work is complete, the court's file is now closed. Defendants are ordered to give notice of this ruling.
3	30-2022-01285693 Gutierrez vs. Christina's Independent Living Skills Program, Inc.	The tentative ruling is to continue the Final Report Hearing to October 12, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The court also issues an Order to Show Cause why the court should not impose monetary sanctions against plaintiff's counsel for failing to comply with the court's order of May 30, 2025 (ROA 136) to file all supporting papers for the Final Report Hearing at least 16 days before the Final Report Hearing date. The hearing is set for October 12, 2026 at 1:30 p.m. Any response to the OSC must be filed at least a week before the hearing. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendant.
4	30-2022-01262267 Meraz-Valencia vs. Westlake Royal Roofing, LLC	The tentative ruling is to continue the hearing on Plaintiff Pedro Meraz-Valencia's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to December 7, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.

	There is no explanation for the change in the number of class members to 475, when the number was estimated to be 417 at the preliminary approval stage. Plaintiff has not provided the court with adequate documentation regarding the requested attorney's fee award. Plaintiff's counsel must provide the number of years of experience for each of the timekeepers for this action. Further, Plaintiff's counsel must also explain why two separate timesheets were provided, with some costs showing up on both timesheets. Plaintiff is required to provide sufficient information to support the court's lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, \$525,000.00, which is a 1.28 multiplier of the lodestar, which the court finds fair, adequate and reasonable for the settlement of this size. The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers these cost items to be properly part of attorney overhead. "Costs for copying and mailing documents" should be deducted from Plaintiff's counsel's attorney cost request. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff's contribution to the case. The [Proposed] Order must be captioned as [Proposed] Order and Judgment. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: "Notice of the judgment must be given to the class in the manner specified by the court." The notice may be included with the checks that are mailed to the class members or posted on the administrator's website. Counsel should propose a realistic Final Report Hearing date in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount
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		that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
5	30-2022-01287621 Rivas vs. Ortronics, Inc.	Plaintiff Oscar Castillo Rivas' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement and Plaintiff's Motion for Attorneys' Fees, Costs, and Class Representative Service Payment are GRANTED. The court concludes that the \$450,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$135,000.00 to plaintiff's counsel for plaintiff's attorneys' fees, as requested; • \$20,022.35 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Oscar Castillo Rivas as enhancement award, as requested; • \$10,000.00 to Phoenix Settlement Administrators, the settlement administrator, as requested; and • \$18,750.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members [and aggrieved employees], if they are paid the amount to which they are entitled pursuant to the judgment, is \$261,227.65. The Final Accounting hearing is set for April 19, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues.